NOEL HAKUNAVANHU CHIRANDE
versus
THE MINISTER OF LOCAL GOVERNMENT AND PUBLIC WORKS N.O
and
ADMORE CHIRANDE
and
MASHONALAND EAST PROVINCIAL ASSEMBLY OF CHIEFS
and
THE PRESIDENT OF THE REPUBLIC OF ZIMBABWE

HIGH COURT OF ZIMBABWE
MUCHAWA J
HARARE; 27 May and 24 June 2026

Court Application

Ms *A T Nyathi*, for the applicant
Mr *D Machingauta*, for the First, Second and Fourth respondents
Mr *B Matongera*, for the Second respondent

MUCHAWA J: This is an application for a declaratory order and consequential relief filed by the applicant in this matter. The applicant is challenging the appointment of the second respondent as the chief of the Mudzimurema community.

The relief sought is stated as follows:

> "IT IS ORDERED THAT
> 1. The appointment and installation of the second respondent as Chief Mudzimurema by the first, third and fourth respondents on the 29th of January 2026 be and is hereby held to be unlawful and wrongful and accordingly set aside.
> 2. The appointment of Chief Mudzimurema be and is hereby suspended until the finalization of HCH 3676/25.
> 3. The respondents are ordered to pay costs of suit on a client – attorney scale."

The applicant's submissions

The applicant submits that his application is properly before the court as he meets all the essential requirements of a declaratur in that he is an interested person in the subject matter of the suit and he has a direct and substantial interest in the matter. Reference was made to the case

of *Johnsen* v *AFC* 1995(1) ZLR 65 and *Econet Wireless* v *The Minister of Public Service, Labour and Social Welfare and 2 Ors* HH 350/15 for the above contention and further that only the High Court can grant a declaratur.

The chieftainship in question is said to be governed by customary law principles of succession. The applicant states that as the first-born son of the first wife he is the rightful heir to the chieftainship in terms of customary law. On the other hand, the second respondent is alleged to be the third born son of the second wife and therefore not entitled to be installed ahead of the applicant under customary law. The installation of the second respondent by the first, third and fourth respondent is alleged to be a total disregard of the established customary succession principles.

It is further alleged that the appointment went against the Masekera family's choice to be the applicant and the family consultations had been directed by the Provincial Chiefs' Council.

The second respondent, by virtue of the installation, is said to have been unjustly enriched at the applicant's expense as he is now enjoying the benefits accruing to that position. Such appointment is said to be unlawful and invalid.

First respondent's submissions

The application is opposed by the first respondent.

A preliminary point is raised to the effect that the applicant has failed to exhaust internal remedies as provided for by the law.

It was argued that if the applicant is aggrieved by the recommendations of the Provincial Assembly and the National Council of Chiefs on the nomination of the substantive chief, he would have the remedy of approaching the President, who in terms of s 283 of the Constitution of Zimbabwe, has the mandate to resolve issues concerning disputes pertaining to the appointment of Chiefs.

In support of the above contention, reference was made to the cases *of Mike Campbell Pvt Ltd & Ors* v *The Republic of Zimbabwe*, Case No SADC (T) 11/09, *Simba & 2 Ors* v *The Director General of the Environmental Management Agency & 4 Ors* HH 111/24 and *Tuso* v *City of Harare* HH 1/2004.

It was prayed that the matter be dismissed on this point.

On the merits it was submitted that the Mudzimurema Chieftainship has no traditional and cultural place or role or consideration for mothers or wives' positions in the clan families. It is said to only give consideration to the succession fundamentals and seniority principles.

The indulgence of the community in the selection of a chief is said not to be constitutional and therefore not a legally sound basis to rely on.

The District Administration is alleged not to have any jurisdiction in the matter. The appointment of the second respondent is alleged to have been done in accordance with the relevant customary laws.

It was prayed that the application be dismissed.

The second respondent's submissions

The second respondent submitted that he was appointed by the fourth respondent as Chief Mudzimurema on 11 December 2024 in terms of s 283(L) of the Constitution of Zimbabwe and s 3(1) of the Traditional Leaders Act [*Chapter 29:17*].

It is averred that the applicant could have filed an application for review within 8 weeks of the appointment to mount a challenge as provided in r 62(4) of the High Court Rules. Instead, the applicant mounted a series of court cases being HCH 4942/24 (an application for interdict, HCH 1853/25 (another application for an interdict). An application for condonation was filed under case no HCH 3676/25 when the court advised that he should have proceeded by way of an application for review.This matter is still pending and is opposed. The applicant then filed the present application.

A point *in limine* is taken to the effect that this application is not properly before the court in the face of the pending application for condonation as this application is clearly a review filed as a declaratur in order to circumvent the time limits for a review. See *Shoko* v *Commissioner of Police & 2 Ors* HH 120/18.

It is prayed that the application be dismissed on this point only.

On the merits reference is made to s 283(c)(i) of the Constitution and s 3 of the Traditional Leaders Act and the case of *Moyo* v *Mkoba & 4 Ors* SC 35/2023 @ p 14 to argue that the court cannot inquire into the fact that the President decided in the exercise of his discretion to appoint the second respondent instead of anyone else as Chief Mudzimurema.

Costs were prayed for on a legal practitioner- client scale as this application is seen as an abuse of court processes. This is because under case number HCH 4942/24 wherein an interdict was sought and the application was dismissed by consent after it was withdrawn noting the second respondent had already been appointed. The applicant said he would proceed by way of review and was legally represented. He however, filed for another interdict under case HCH 185/25 which was dismissed. He then filed an application for condonation and now this application.

It is argued that the second respondent has been unnecessarily put out of pocket and thse proceedings are dishonest, vexatious and reckless as per *Chidziva & 9 Ors* v *Chidziva DR 1034/23 & 6 Ors* HH 331/25.

It is prayed that the application be dismissed with costs on a higher scale.

Whether the applicant failed to exhaust internal remedies

It was conceded by Mr Machingauta that the applicant had done its part by addressing letters of complaint to the President and the Director of Traditional leaders, which letters had not been responded to.

It is my finding therefore that the applicant did exhaust internal remedies.

Whether the application is improperly before the court in the face of the pending application for condonation.

It is contended for the second respondent, that this application has been made to circumvent the applicant's application for condonation under HCH 3676/25 and such procedure is improper. The application for condonation is meant to pave way for the application for review which is now out of time.

The applicant insists that he is not seeking a review but a declaratory order.

The learned authors Herbstein & van Winsen in *Civil Practice of The Supreme Court of South Africa* 5th ed p 1271 explain a review as:

> "Where, however the real grievance is against the method of the trial, it is proper to bring the case on review…The essential question in review proceedings is not the correctness of the decision under review, but its validity."

One needs to only look at para 1 of the draft order in which it is sought that the court orders as follows:

> "The appointment and installation of the second respondent as Chief Mudzimurema by the first, third and fourth respondents on the 29th of January 2026 be and is hereby held to be unlawful and wrongful and accordingly set aside."

In his founding affidavit, the applicant outlines the process followed in the appointment of the second respondent and impugns that process. He says the final process was not based on the customary and traditional principles of the community. The District Administrator is alleged to have acted outside such principles in nominating the second respondent's grandfather contrary to what the Council of Chiefs found. The question of whether a child born to the second wife can be eligible ahead of the first born of the first wife relates to the method employed in the nomination and subsequent appointment. Letters addressed to the first respondent also deal with the impropriety of the process employed.

In para 7.22 of the founding affidavit, the applicant makes clear that as far cack as 26 June 2025 he became aware that he was supposed to file an application for review instead of an interdict. To pave way for what, an application for condonation for review under HCH 3676/25 was filed. Though the matter was heard, judgment was still pending when I heard this matter.

What the applicant is doing is unacceptable. It is forum shopping. In *Kwete* v *Africa Community Publishing and Development Trust and Ors* HH 226/98 @ p 3, it was held as follows:

> "It seems to me anomalous that one should be permitted to file an application for review well out of time, without seeking condonation as long as a declaratory order is sought."

In *Thokozani Khupe v The Officer In Charge Law and Order Bulawayo Central Police Station & 2 Ors* HB 15/05 NDOU J had this to say:

> "Although couched as a declaratur, this latter prayer is one for review. What the applicant seeks is that I review the decision of the second respondent. …A declaratory order is, in any event merely one of the species of relief available and the applicant should be able to get around the time limits for review proceedings by instituting proceedings for a declaratory order."

In the light of what comes out of the founding affidavit, the draft order and the history and background of this matter, it is clear that the applicant seeks a review which he filed clothed as a declaratur to get around the time limits for review. This cannot be countenanced. See *Ex Constable Shoko* v *The Commissioner of Police & 2 Ors* HH 120-18.

It is my finding that this application is improperly before me.

Costs

The second respondent prays for costs on a higher scale as this application is considered as an abuse of court process. The second respondent is being unnecessarily put out of pocket through numerous matters filed by the applicant. In case HCH 4942/24, the interdict sought was withdrawn as it was noted that the second respondent had already been appointed. Instead of proceeding by way of review, he filed another interdict under case No. HCH 185/25. Thereafter an application for condonation of late filing of an application for review was filed and has not been pursued to its logical conclusion. The applicant has once again clogged the court system by filing this application for a declaratur seeking to circumvent the time limits but seeking the same relief. Costs on a higher scale are justified.

Disposition

The matter being improperly before the court is struck off the roll with costs on a legal practitioner and client scale.

MUCHAWA J……...

Mugiya Law Chambers, applicant's Legal Practitioners
Civil Division of the Attorney General's Office, first, third and fourth respondent's Legal Practitioners
Masinire Law Chambers, second respondent's Legal Practitioners